

Tanveer Azam v. State of U.P. and others

Allahabad High Court · Division Bench · 21 June 2012 · WRIT - C No. 30579 of 2012 · **Connection directed on clause 4.4 indemnity; later dismissed as not pressed.**

HEADNOTE

Clause 4.4 of the U.P. Electricity Supply Code, 2005 permits a fresh connection to an occupier on the indemnity in Annexure 4.2 where the owner withholds consent. Directing the Executive Engineer and SDO to release supply within three days of the bond, the Court held that want of a rent deed was no ground to keep the pending application unattended. The occupation dispute with the landlady was not decided. The writ was later dismissed as not pressed as infructuous.

FACTUAL SUMMARY

The petitioner occupied house No. D-32, G.T.B. Nagar, Kareli, Allahabad as tenant of the husband of respondent no. 4. After the landlord died, the landlady sought to evict him and had the distribution licensee permanently disconnect supply on 12 May 2012. His 29 May 2012 application for a fresh connection was not processed for want of her consent and a rent deed. He moved the High Court. The licensee relied on clause 4.4 of the Supply Code, 2005, which allows a connection on an indemnity in Annexure 4.2.

REUSABLE CONSTRUCTIONS

1. Where the owner withholds consent, an occupier who has been living in the premises may obtain a fresh electricity connection under clause 4.4 of the U.P. Electricity Supply Code, 2005 by submitting the indemnity bond in Annexure 4.2; want of a rent deed is not a ground to refuse or keep the application pending.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier fresh connection on indemnity without owner consent

HOLDING

Without deciding the occupation dispute, the Court directed the Executive Engineer, Allahabad Division, and the SDO, Sector Kalyani Devi, to provide a fresh electricity connection to the occupier-petitioner on his submitting the indemnity bond on Form 4.2 (Annexure 4.2 to clause 4.4). The application had been pending since 29 May 2012 for want of a rent deed; the connection was to be released within three days of the indemnity. Counsel for the licensee had accepted that sub-clause (a) of para 4.4 permits supply on proof of occupancy or on that indemnity where the owner does not consent.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PETITIONER'S OCCUPATION AS AGAINST THE LANDLADY

The Court expressly declined to go into the occupation or title dispute and proceeded on prima facie long residence, including from the petitioner's passport.